



File No.: EXP202309195

RESOLUTION OF WARNING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 26, 2023, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A. or the complained party).

The facts brought to the attention of this authority:

The complainant states that A.A.A. has two surveillance cameras on the façade, above the entrance of the garage door of their home, located at ***ADDRESS.1. They assert that the cameras are directed towards the public road and that they are not marked with the required signs indicating a monitored area.

Along with the complaint, among other documents, two photographs were submitted showing:

- A single-family home with a garage door under a terrace. Above the garage access door, two surveillance cameras are visible. No informational sign is observed alerting about the surveillance system.
- A close-up of the aforementioned surveillance cameras, directed at opposite angles towards the public road.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on August 21, 2023, by A.A.A., as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding notice.

THIRD: On September 26, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On February 4, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringements of Articles 5.1 c) and 13 of the GDPR, classified respectively in Articles 83.5 a) and 83.5 b) of the GDPR.

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FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 11, 2025, as evidenced by the acknowledgment of receipt in the file.

SIXTH: Once the deadline for submitting allegations had passed, it has been confirmed that no allegations have been received from the complained party.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The property located at ***ADDRESS.1 has a surveillance system consisting of two cameras

situated above the exterior door of the garage entrance of the property.

SECOND: The aforementioned cameras capture excessive footage of the public road due to their location and orientation.

THIRD: The aforementioned surveillance system lacks the required informational signs indicating a monitored area in a sufficiently visible location.

FOURTH: The data controller is A.A.A. with NIF ***NIF.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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Considering the nature of the facts that have given rise to the proceedings and the concurrent circumstances, the present warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure will have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

The image is a personal data

Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Article 4.7 of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law."

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Images captured by a system of cameras or video cameras are personal data, and their processing is

subject to data protection regulations.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since A.A.A. carries out, among other processing activities, the collection and storage of personal data by having a video surveillance system that captures images of natural persons.

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A.A.A. carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity under Article 4.7 of the GDPR.

IV

Obligations regarding video surveillance

The processing of images through a video surveillance system, to be compliant with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is foreseen in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, the distinguishing sign of the monitored area must be placed at each of them.

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This information must be provided in advance -considering Article 39 of the GDPR-. The objective is to clarify the context of the surveillance.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of

72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, dated April 4. The Spanish Data Protection Agency provides access through its website

[<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

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V

Obligation not fulfilled: violation of Article 5.1 c) of the GDPR

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR.

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')".

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera systems or video cameras for the purpose of ensuring the security of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed".

This means that in a specific processing operation, only relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior government authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not obtain images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve

the security of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the installation's intended environment be permitted, particularly not affecting public spaces.

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surrounding areas, adjacent buildings, and vehicles other than those accessing the monitored space.

If there were an easement of passage over a property or land, the processing of data would not be excluded from the scope of data protection regulations, since, being an area subject to an easement of passage, it is accessible not only by the owner of the dwelling and the persons authorized by them, but also by third-party owners of the dominant estate of the easement.

Furthermore, the installed cameras cannot capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby who freely transit the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

The installed cameras cannot capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby who freely transit the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces, in violation of Article 5 of the GDPR, as previously indicated.

In the case of single-family homes, if the cameras are installed outdoors and can capture images of people at entrances, facades, or party walls, the provisions of the GDPR will apply as described above.

In this case, the controversial video surveillance system consists of two cameras located on the exterior facade of A.A.A.'s home above the access door to the garage of the dwelling. The location and orientation of these cameras allow for excessive capture of public thoroughfare, particularly the sidewalk and roadway located in front of the mentioned garage, including vehicles present there, as well as passersby who are passing through.

Therefore, based on the available evidence, it is considered that the known facts constitute an infringement attributable to A.A.A. for violating Article 5.1 c) of the GDPR as transcribed above.

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VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies the violation of the following article as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Unfulfilled obligation. Information that must be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of their representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

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f) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the location where they are made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for

which they were collected, they shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, the video surveillance system consisting of two cameras does not have the required information sign visibly displayed in the monitored area. This implies non-compliance with the provisions of Article 13 of the GDPR regarding the obligation to provide information to data subjects at the time of collecting their personal data. The provision of information, which, in relation to video surveillance, Article 22 of the LOPDGDD provides through a system of "layered information."

Therefore, in accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to A.A.A., for violation of Article 13 of the GDPR transcribed above.

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VIII

Qualification of the infringement of Article 13 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies the violation of the following article as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of data subjects under Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

IX

Warning

When there is an infringement of the provisions of the GDPR, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of that Regulation includes the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any data controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the data controller or processor, may issue a warning.

In this case, given the nature of the facts and circumstances presented in the preceding legal grounds, it is considered that, for each of the

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violations of the aforementioned articles, it is appropriate to issue a warning to A.A.A.

X

Corrective Measures

Once the violations are confirmed, the resolution may establish the corrective measures that the responsible party must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Articles 5.1 c) and 13 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

In this case, A.A.A. is required to adopt the following measures within one month from the date of the final resolution concluding this procedure:

- Demonstrate the reorientation of the cameras so that they avoid excessive capture of public thoroughfares. If the reorientation is not sufficient for these purposes, provide evidence of the removal of the cameras or the installation of privacy masks.
- Provide evidence of the placement of the informative sign in a sufficiently visible location of the monitored area, including among the information provided on it: the identification of at least the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in the data protection regulations.

It is warned that failure to comply with the orders to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for:

- The violation of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.
- The violation of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to provide evidence of having complied with the measures indicated in the Legal Basis X.

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THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish

Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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